

"Civility allows for zealous representation, reduces clients' costs, better advances clients' interests, reduces stress, increases professional satisfaction, and promotes effective conflict resolution. These guidelines foster the civility and professionalism that are hallmarks of the best traditions of the legal profession."

OCBA Civility Guidelines

"The American legal profession exists to help people resolve disputes cheaply, swiftly, fairly, and justly. Incivility between counsel is sand in the gears."
(*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 747.)

TENTATIVE RULINGS
Judge Kimberly Knill, Dept. C31

- **The court encourages remote appearances to save time, reduce costs, and increase public safety.** Go to www.occourts.org/media-relations/civil.html and click on the blue box that says, "Click here to appear/check-in for Civil Small Claims/Limited/Unlimited/Complex remote proceedings." Navigate to Department C31 Judge Kimberly Knill.
- All hearings are open to the public.
- If you desire a transcript of the proceedings, you **must** provide your court reporter (unless you have a fee waiver and request a court reporter in advance).
- Call the other side. If **everyone** submits to the tentative ruling, call the clerk at **657-622-5231**. Otherwise, the court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

No filming, broadcasting, photography, or electronic recording of the video session is permitted pursuant to California Rules of Court, rule 1.150, and Orange County Superior Court rule 180.

HEARING DATE: Friday, 12/13/2024 10:00 AM

#	Case Name	Tentative
1	Faith Christian Reformed Church vs. Ahn 30-2022-01267669-CU-OR-CJC	Motion to be Relieved as Counsel of Record for Cross-Defendant Joong Han Chung The motion of attorney Emanuel Thomas of The Thomas Firm, to be relieved as counsel of record for cross-defendant Joong Han Chung is GRANTED. The order will become effective upon counsel's filing of a proof of service of the order upon the client. Attorney Thomas to give notice.
2	Chao vs. Chao 30-2024-01416045-CU-OR-CJC	Plaintiff's Motion for 1) Judgment Declaring Defendant Joseph I. Chao Deceased as a Matter of Law, 2) Default Interlocutory Judgment of Partition, and 3) Appointment of Referee

		Plaintiff, Tony I. Chao's motion for a judgment declaring defendant Joseph I. Chao deceased, a default interlocutory judgment for partition, and appointment of referee for the condominium located at 12635 Main St, Unit 201, Garden Grove, CA, 92840, Assessor's Parcel Number 930-534-26 is DENIED. <u>Presumption of Death</u> The statements in plaintiff's declaration and stipulation are conclusory and do not satisfy the first and second elements of the presumption. (See <i>Conservatorship of Geiger</i> (1992) 3 Cal.App.4th 127, 135.) While the motion states plaintiff and defendants are brothers, neither plaintiff's declaration nor the stipulation states they are brothers. Even if they did, neither document provides foundational facts establishing either plaintiff or Jeremy are persons who would likely see or hear from Joseph. Neither document provides facts establishing plaintiff and/or Jeremy were in regular contact with Joseph prior to February 7, 2007. Further, neither document explains the steps that were taken, or by whom, to conduct a diligent search/inquiry about Joseph's whereabouts over the last 17 years. <u>Partition</u> This statutory scheme envisions an interlocutory judgment of partition, and that must come as the result of a trial or summary judgment. (See Code Civ. Proc., § 872.710, subd. (a) ["At the trial, the court shall determine whether the plaintiff has the right to partition."] Neither has occurred. Plaintiff to give notice.
3	Manlapeg vs. UCNC, Inc. 30-2024-01411013-CU-WT-CJC	Defendant's Motion to Stay and Compel Arbitration The Motion to Compel Arbitration brought by Defendant UVNV, Inc. dba Ultra Mobile is GRANTED. There is no dispute Plaintiff executed an "Agreement to Mediate and Arbitrate" with Defendant, wherein Plaintiff agreed to arbitrate "any dispute or controversy arising out of or relating to Employee's hire, employment, remuneration, separation or termination from the Company...." (§9 of Midigaspe Declaration and Exhibit A thereto, Arbitration Agreement at ¶3, ¶5; See also ¶3-¶4 and ¶9 of Manlapeg Declaration.) Plaintiff does not dispute the authenticity of her signature and, instead, confirms she signed the agreement. (§9 of Manlapeg Declaration.) There is no dispute the arbitration agreement applies to the claims herein.

		In opposing the motion, Plaintiff asserts the agreement is unconscionable. The unconscionability doctrine applies to agreements governed by the FAA, as well as the CAA. (See <i>Sonic-Calabasas A, Inc. v. Moreno</i> (2013) 57 Cal.4th 1109, 1145.) Unconscionability is a defense to enforcement of an arbitration agreement and Plaintiff bears the burden of proof thereon. (<i>Iyere v. Wise Auto Group</i> (2023) 87 Cal.App.5th 747, 754-755.) "[T]he doctrine of unconscionability has both a procedural and a substantive element, the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results." (<i>Murrey v. Superior Court of Orange County</i> (2023) 87 Cal.App.5th 1223, 1237.) "Both procedural and substantive unconscionability must be present before a court can refuse to enforce an arbitration provision based on unconscionability..." (<i>Navas v. Fresh Venture Foods, LLC</i> (2022) 85 Cal.App.5th 626, 632.) Plaintiff asserts the agreement is procedurally unconscionable, because it was adhesive. (Opposition: 9:17-11:4.) "An adhesive contract is defined as 'a standardized contract, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.' " (<i>Gutierrez v. Autowest, Inc.</i> (2003) 114 Cal.App.4th 77, 88.) To establish the agreement is adhesive, Plaintiff declares, "there was no way for me to edit or modify any of the documents." (¶4 of Manlapeg Declaration.) Plaintiff refers to the agreement as a "boilerplate contract that Ultra imposed on me on a 'take-it-or-leave-it' basis" and indicates she was not offered the opportunity to negotiate. (¶6 of Manlapeg Declaration.) While it is true adhesive contracts create a "modest degree of procedural unconscionability" (<i>Nguyen v. Applied Medical Resources Corp.</i> (2016) 4 Cal.App.5th 232, 248) and true that Plaintiff's declaration describes circumstances which generally qualify as adhesive, the agreement allowed Plaintiff to opt-out of arbitration. The agreement states: "If resolution of the dispute is not achieved through mediation, the parties agree to settle their dispute by binding arbitration under the Federal Arbitration Act...unless the Employee notifies the Company in writing within 30 days of signing this Agreement that Employee prefers not to be covered by the benefits of Arbitration." (¶9 of Midigaspe Declaration and Exhibit A thereto, Arbitration Agreement at ¶5.) Additionally, the agreement states: "No employee will be retaliated or discriminated against for refusing to consent to this Agreement. Signing this Agreement is voluntary." (¶9 of
--	--	---

Midigaspe Declaration and Exhibit A thereto, Arbitration Agreement at ¶13.)

To address the above, Plaintiff states, "I read the Agreement and did not understand that I had the right to revoke it. Rather, I understood at the time that I could not start work for Ultra if I did not sign the Agreement." (¶5 of Manlapeg Declaration.)

In the absence of fraud, overreaching or excusable neglect, one who signs an instrument may not avoid the impact of its terms on the ground he failed to read the instrument before signing it.

(*Roldan v. Callahan & Blaine* (2013) 219 Cal.App.4th 87, 93.)

"Moreover, courts must also presume parties understood the agreements they sign, and that the parties intended whatever the agreement objectively provides, whether or not they subjectively did. Where the parties have reduced their agreement to writing, their mutual intention is to be determined, whenever possible, from the language of the writing alone. The parties' expressed objective intent, not their unexpressed subjective intent, governs." (*Ibid.* (cleaned up).)

It is undisputed Plaintiff did not opt out of arbitration. (¶10 of Midigaspe Declaration and ¶5 of Manlapeg Declaration.) The plain language of the agreement provided Plaintiff with the ability to opt out of arbitration and Plaintiff identifies no language or conduct by Defendant, which supports her subjective understanding arbitration was mandatory. Consequently, the agreement was not adhesive.

Next, Plaintiff assert procedural unconscionability exists, based on "surprise." (Opposition: 11:5-11.) "Unfair surprise results from misleading bargaining conduct or other circumstances indicating that a party's consent was not an informed choice." (*Penilla v. Westmont Corp.* (2016) 3 Cal.App.5th 205, 214.) "Unfair 'surprise' covers a variety of deceptive practices and tactics, including hiding a clause in a mass of fine print or phrasing a clause in language that is incomprehensible to a layperson." (*Id.* at p. 216.)

Plaintiff asserts she was unfairly surprised, as the agreement "does not clearly explain that Christine was giving up the right to a jury trial." (Opposition: 11:13-14.) However, Plaintiff acknowledges the agreement states, immediately above the signature line:

THE PARTIES UNDERSTAND AND AGREE THAT, BY SIGNING THIS AGREEMENT, THEY ARE ELECTING TO RESOLVE THE DISPUTES, CLAIMS AND/OR CONTROVERSIES TO WHICH IT APPLIES THROUGH MEDIATION AND ARBITRATION AND ARE WAIVING THEIR RIGHT TO A JUDICIAL FORUM.

(¶9 of Midigaspe Declaration and Exhibit A thereto, Arbitration Agreement at ¶15.) Plaintiff argues the phrase “judicial forum” is “confusing legalese,” however, the language clearly indicates disputes will be resolved via arbitration.

Plaintiff argues she was surprised to discover that “Ultra retained for itself the right to sue me in a court of its choosing” and “Ultra refused to negotiate at mediation” (¶7-¶8 of Manlapeg Declaration); however, these arguments are unconnected to any language within the agreement. In contrast to Plaintiff’s subjective understanding, the agreement provides for mediation and arbitration of “any dispute or controversy between Employee and the Company....” (¶9 of Midigaspe Declaration and Exhibit A thereto, Arbitration Agreement at ¶3.)

At most, the agreement states: “In the event the parties proceed to mediation and/or arbitration, either party hereto may apply to a California court for any provisional remedy pursuant to California Code of Civil Procedure Section 1281.8, including a temporary restraining order or preliminary injunction.” (¶9 of Midigaspe Declaration and Exhibit A thereto, Arbitration Agreement at ¶6.)

To the extent Plaintiff is referring to the above language, this provision is not unconscionable. (*Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1246-1248 [“...the provisional relief clause does no more than recite the procedural protections already secured by section 1281.8(b)...regardless of whether Forever 21 is, practically speaking, more likely to seek provisional remedies than its employees, simply reciting the parties’ rights under section 1281.8 does not place Baltazar at an unfair disadvantage.”])

Plaintiff has not met her burden of establishing procedural unconscionability.

Defendant’s request for attorneys’ fees is DENIED. Defendant asserts “[t]he filing of this lawsuit, and Plaintiff’s subsequent refusal to dismiss the lawsuit, is frivolous, groundless, unreasonable and malicious.” (Motion: 18:11-12.) Thereafter, citing Government Code section 12965, subdivision (c)(6), Defendant requests attorneys’ fees. (Motion: 18:19-23.)

Defendant has not prevailed on Plaintiff’s FEHA claims and there has been no showing Plaintiff’s FEHA claims are “frivolous, unreasonable or groundless.” Moreover, Defendant cites no authority permitting an award under this provision, in the context of a motion to compel arbitration.

The action is STAYED pending completion arbitration. (Code Civ. Pro., § 1281.4; 9 U.S.C. § 3.)

		The court schedules an Arbitration Review Hearing for 12/4/2025 at 1:30 PM. All parties are ORDERED to file a Joint Status Report 5 days prior to the hearing. Defendant to give notice.
4	Mourshaki vs. California Fair Plan 30-2023-01311171-CU-IC-CJC	Defendant California Fair Plan Association's Motion to Compel Appearance of Plaintiffs at Deposition and Request for Monetary Sanctions Defendant California FAIR Plan Association's motion to compel plaintiffs Fatameh Mourshaki and Abraham Nasiri to appear for their depositions is GRANTED. On 9-19-24, Defendant electronically served Plaintiffs with amended notices of deposition setting their depositions for 10-3-24. (Moutes-Lee Decl., ¶ 11-13, Exs. E-F.) Electronic service on Plaintiffs who were not represented by counsel until 11-4-24 was improper. (ROA Nos. 183, 184.) Electronic service is not permitted on a self-represented party absent their affirmative consent, of which there is no evidence here. (Cal. Rules of Court, rules 2.251(c)(3)(B), 2.253(b)(2), (b)(3).) However, on 9-23-24, Defendant's counsel re-served these amended notices of deposition on Plaintiffs via mail. (Moutes-Lee Decl., ¶¶ 15-17, Exs. H-I.) Therefore, the amended notices setting Plaintiffs depositions for 10-3-24 were properly served on Plaintiffs. Plaintiffs failed to appear for their depositions on 10-3-24 and Defendant's counsel's office took certificates of non-appearance. (Moutes-Lee Decl., ¶¶ 21-22, Ex. L.) Since the filing of the Motion, Nasiri has agreed to appear for his deposition which is scheduled for 12-9-24. If Nasiri appeared for his deposition on 12-9-24, the Motion is MOOT as to Nasiri. If Nasiri failed to appear for his deposition on 12-9-24, Nasiri is ORDERED to appear for his deposition within 7 days. Mourshaki has refused to appear unless she is allowed to appear remotely. Although Mourshaki claims to be unable to travel to defense counsel's office because of health issues, she has not provided any medical documentation corroborating her claim. Mourshaki is ORDERED to appear for her deposition within 7 days. The parties are ORDERED to meet and confer within 24 hours to agree on the date, time, and place for the depositions. The court ORDERS Plaintiffs to pay \$2,821.25 in sanctions to Defendant within 20 days. Moving party to give notice.

		Ex Parte No tentative.
5	Nepi vs. Harley-Davidson, Inc. 30-2023-01344398-CU-BC-CJC	Defendant Harley-Davidson Motor Company, Inc.'s Motion to Compel Responses to Form Interrogatories, Set One, and Request for Sanctions GRANTED. Plaintiff Garrett A. Nepi is ORDERED to provide verified responses, without objections, to Defendant's Form Interrogatories, Set One within 15 days. Plaintiff Garrett A. Nepi is ORDERED to pay sanctions in the amount of \$580.00 to Defendant within 15 days Defendant to give notice. Defendant Harley-Davidson Motor Company, Inc.'s Motion to Compel Responses to Special Interrogatories, Set One, and Request for Sanctions GRANTED. Plaintiff Garrett A. Nepi is ORDERED to provide verified responses, without objections, to Defendant's Special Interrogatories, Set One within 15 days. Plaintiff Garrett A. Nepi is ORDERED to pay sanctions in the amount of \$580.00 to Defendant within 15 days Defendant to give notice. Defendant Harley-Davidson Motor Company, Inc.'s Motion to Compel Responses to Requests for Production, Set One, and Request for Sanctions GRANTED. Plaintiff Garrett A. Nepi is ORDERED to provide verified responses, without objections, to Defendant's Requests for Production, Set One, and to serve responsive documents, within 15 days. Plaintiff Garrett A. Nepi is ORDERED to pay sanctions in the amount of \$580.00 to Defendant within 15 days Defendant to give notice.
6	Ngo vs. Westminster Professional Associates, LLC	Defendant's Motion to Compel Responses to From Interrogatories, Set One Defendant's Motion to Compel Deposition

	30-2023-01350083-CU-CO-CJC	Defendant's Motion to Compel Further Responses to Form Interrogatories, Set One, Request for Monetary Sanctions, and Discovery Referee Continued to 2/14/2025 at 10:00 AM.
7	Jimenez vs. Orozco & Son Transportation, Inc. 30-2023-01342099-CU-OE-CJC	Plaintiff's Motion to Enforce Settlement Plaintiff Mario Jimenez's Motion to Enforce Settlement is GRANTED as to Defendant Orozco & Son Transportation, Inc. and DENIED as to Defendant Irma Orozco. Plaintiff has shown a valid and binding settlement agreement between himself and Defendant Orozco & Son Transportation, Inc., which included all the material terms of the settlement and was accepted while litigation was pending. Plaintiff has further shown Defendant Orozco & Son Transportation, Inc. has not complied with the terms of the settlement agreement. Plaintiff's request for \$5,000 in attorney's fees is DENIED as he is not entitled to fees under the Settlement Agreement. Plaintiff to submit a proposed judgment within 5 days. Plaintiff to give notice.
8	Wu vs. Bob Page, Orange County Registrar of Voters 30-2024-01419457-CU-WM-CJC	Petitioner's Motion for Attorney Fees Petitioner Zhen Wu's motion for attorney fees is GRANTED in the amount of \$8,900. (Code Civ. Proc., § 1021.5.) Petitioner's enforcement of the accuracy of the ballot conferred an important right affecting the public interest by forcing Schneider to change her improper designation. If not corrected, the voters would have been misled into believing she held an occupation she did not hold. The correction conferred a significant benefit on the electorate. (See <i>Lindelli v. Town of San Anselmo</i> (2006) 139 Cal.App.4th 1499, 1516.) The financial burden of this private enforcement warrants subsidizing Wu's attorneys. In a writ case, such as this case, the only relief under the petition is either issuance or nonissuance of the writ. Neither party is seeking damages from the other; no money would be awarded to the petitioner or real party in interest. The only remedy was in correcting the ballot pamphlet or keeping the ballot pamphlet as it was. The ultimate beneficiaries were the voters. Thus, the interest of both sides is nonpecuniary. Schneider's reliance on <i>Willard v. Kelley</i> (2015) 238 Cal.App.4th 1049 is misplaced. In <i>Willard</i>, the court found Woolery's successful defense against the petition did not confer a significant benefit to the electorate. Woolery wanted a designation of Orange Treasurer/CPA, while his opponent wanted him to use his more

		time-consuming job of Deputy Director of Administration for the Riverside District Attorney. The court upheld Woolery's choice because either would have been proper, and neither choice would have deceived the voter. However, the court found that Woolery's victory did not shed light on his views as a candidate, but briefly related to one aspect of his work experience. (<i>Id.</i> at p. 1057.) Here, Schneider's preferred designation as educator likely would have deceived the voters into believing she was a certified teacher or some other type of teaching professional, while her correct designation as elementary library media technician accurately reflects her position. Wu's declaration established the Capistrano Unified School District provides a description of Schneider's actual position and educational experience is a high school degree or its equivalent and the only license is a driver's license. Schneider's opposition does not address the amount of fees sought by Wu. Failure to challenge a contention in a brief results in the concession of that argument. (<i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566.) The court finds attorney Mark Rosen's hourly rate of \$500 and his 17.8 hours of work reasonable. Petitioner to give notice.
9	D&S Washout Systems, Inc. vs. Lennar Homes of California LLC 30-2024-01404442-CU-BC-CJC	Application for Writ of Attachment Continued to 1/24/2025 at parties' request.
10	National Funding, Inc. vs. The Meat Shop of Indianapolis Inc. 30-2024-01375055-CU-BC-CJC	Plaintiff's Motion for Summary Judgment, or in the Alternative, Summary Adjudication Plaintiff National Funding, Inc.'s unopposed motion for summary judgment against Defendants The Meat Shop of Indianapolis Inc. and Larry Miller Jr. is GRANTED. <u>First Cause of Action for Breach of Contract against The Meat Shop of Indianapolis, Inc. ("Borrower"):</u> "To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) plaintiff's performance of the contract or excuse for nonperformance, (3) defendant's breach, and (4) resulting damage to the plaintiff." (<i>Richman v. Hartley</i> (2014) 224 Cal.App.4th 1182, 1186.)

Plaintiff and Borrower executed a Business Loan Agreement, agreement number FWC685761 ("Loan Agreement"), whereby Borrower received an original loan from Plaintiff in the principal amount of \$110,000.00. (Plaintiff's Undisputed Material Fact ("UMF") No. 1.) Plaintiff deposited all monies required under the terms of the Loan Agreement into the bank account for Borrower and has fully performed its obligations under the Loan Agreement. (UMF Nos. 10, 11.) Borrower breached the Loan Agreement on 8-31-23, by failing to make its daily payment, as required under the terms of the Loan Agreement. (UMF No. 5.) Upon Borrower's breach, Plaintiff elected to exercise its rights and remedies under the Loan Agreement and declare a breach, making the entire outstanding balance of \$96,426.36 due and payable. (UMF No. 6.) Plaintiff has demanded payment from the Borrower, but the Borrower has failed to pay the amounts due under the Loan Agreement. (UMF Nos. 7, 8.) As a result, Plaintiff has been damaged in the amount still due and outstanding as well as the attorneys' fees and costs incurred in collecting under the Loan Agreement.

Plaintiff has therefore met its initial burden to produce admissible evidence on each element of the breach of contract cause of action. The burden shifts to Borrower to show that a triable issue of material fact exists. Borrower has not opposed the Motion.

Second Cause of Action for Breach of Guaranty against Larry Miller Jr. ("Guarantor"):

The elements to a claim for breach of guaranty are: (1) a guarantor guaranteed payment of indebtedness of a primary obligor, (2) the primary obligor defaulted, (3) notification was given to the guarantor as to the primary obligor's default, (4) there was nonpayment of the debt by the guarantor, and (5) damages. (*Torrey Pines Bank v. Superior Court* (1989) 216 Cal.App.3d 813, 819.)

Guarantor guaranteed the indebtedness of Borrower under the Loan Agreement. (UMF Nos. 3, 4.) Borrower defaulted on the Loan on 8-31-23 by failing to timely make its daily payment, as required under the terms of the Loan Agreement. (UMF No. 5.) Plaintiff has demanded payment from both Borrower and Guarantor for the amount due under the Loan Agreement and Guaranty. (UMF No. 7.) Guarantor has failed to pay the amounts due under the Loan Agreement and Guaranty. (UMF No. 8.) As a result, Plaintiff has been damaged in the amount still due and outstanding as well as the attorneys' fees and costs incurred in collecting under the Loan Agreement.

Plaintiff has met its initial burden to produce admissible evidence on each element of a cause of action for breach of guaranty. The

		burden shifts to Guarantor to show that a triable issue of material facts exists. Guarantor has not opposed the Motion. Plaintiff to give notice and to submit a proposed judgment within 5 days.
11	Mitchell vs. Sun West Mortgage Company, Inc. 30-2023-01329108-CU-WT-CJC	Defendant's Motion for Summary Judgment Defendant, Sun West Mortgage Company, Inc.'s motion for summary judgment or, in the alternative, summary adjudication, is DENIED. All objections are overruled as immaterial to the court's determination and preserved for appeal. (See <i>Reid v. Google, Inc.</i> (2010) 50 Cal.4th 512, 526.) Defendant's requests for judicial notice 1-4 are granted, and 5 is denied. <u>First Cause of Action – Labor Code § 2802</u> There exists a triable issue of material fact as to whether plaintiff resided in California and/or performed a majority of work in California, and therefore as to whether he can avail himself of the protections of Labor Code section 2802. <u>Second Cause of Action – Retaliation in Violation of Labor Code § 1102.5</u> There exists a triable issue of material fact as to whether the alleged retaliatory acts took place in California or outside of California. <u>Third Cause of Action – Wrongful Termination in Violation of Public Policy – Retaliation in Violation of FEHA</u> There exists a triable issue of material fact as to whether the alleged retaliatory acts took place in California or outside of California. <u>Adjudication of Issue 1</u> A party may move for summary adjudication of one or more cause of action, affirmative defense, claim for damages, or issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1).) The issue sought to be adjudicated does not fall into one of these categories. Even if it did, there exists a triable issue of material fact as to whether plaintiff resided in California and/or was a California resident at the time of the alleged harassment and termination. Plaintiff to give notice.